

**HEARING ON DEMURRER TO: COMPLAINT**

**FILED BY: BARBERA, MICHELLE**

**\*TENTATIVE RULING:\***

See Line 9 above.

**12. 9:00 AM CASE NUMBER: C25-02955**

**CASE NAME: GEROME HENDRICKS VS. KATRINA ACOSTA**

**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER M. EGAN**

**FILED BY: ACOSTA, KATRINA**

**\*TENTATIVE RULING:\***

Christopher M. Egan, Sijia S. Pu and PORTER SCOTT (“Counsel”) filed a Motion to be Relieved as Counsel on March 16, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on June 15, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Katrina Acosta dba Divine Home (“Defendant”). The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship because of an inability to establish contact with Defendant and because the insurance company is no longer providing any coverage for this lawsuit. See Declaration filed March 16, 2026, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to resubmit an updated order after hearing (MC-053) which is complete, including specifying the client’s last known address and telephone number at Paragraph 6.

**13. 9:00 AM CASE NUMBER: C26-00316**

**CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC**

**HEARING IN RE: APP TO FILE DOCUMENTS UNDER SEAL**

**FILED BY:**

**\*TENTATIVE RULING:\***

Plaintiff “G.D., as Trustee of a Private Family Trust” (“Plaintiff”) filed an Application to File Documents under Seal on January 29, 2026 (the “Motion to Seal”). The Motion to Seal was set for hearing on June 15, 2026.

### Background

The Motion to Seal was filed at the outset of this case, along with the operative Complaint filed January 29, 2026.

The motion seeks to seal documents described as (1) “Confidential Declaration of True Trust Name and Authority” and (2) “Confidential Declaration of Vehicle Details” and (3) a “Confidential Contact Information Declaration” (the “Documents to be Sealed”). The Court has received and review these materials conditionally lodged under seal.

An Opposition brief was filed on June 4, 2026 by defendants Walnut Creek Luxury Cars, LLC (the “Dealer”) and Hudson Insurance Company (“Hudson”). Although there is an issue regarding a default sought to be entered against the Dealer and its ability, at this stage, to actively participate in the litigation, the Court has considered the Opposition, as it is also proffered by defendant Hudson which has appeared in the action. The Court exercises its discretion to consider the Opposition brief.

### Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The application lacks merit for several reasons.

First, the application is procedurally defective. There is no supporting declaration proffered other than

the Documents to be Sealed themselves. Moreover, Plaintiff failed to serve the application. The Proofs of Service of Summons filed by Plaintiff on March 23, 2026 and April 1, 2026 do not list this application as among the documents served.

Second, Plaintiff conflates seeking to litigate anonymously with seeking to seal court records. Generally, even when documents are sealed, they typically remain accessible to the parties engaged in the litigation. They are just not publicly available for inspection. Rather, what Plaintiff appears to desire is the ability proceed with this lawsuit using a pseudonym and to keep certain information about a supposed related trust and other information secret.

Third, even if the Court could, in the context of the present application, entertain making orders allowing Plaintiff to proceed by pseudonym and keep such information secret, it would not do so. Plaintiff has not shown any sufficient basis for such relief.

Under Code of Civil Procedure section 422.40, in a civil complaint, the title of the action shall include the names of all the parties, except as provided by statute or rule of the Judicial Council. Courts only allow parties to proceed under a pseudonym in special circumstances, where the parties' need for anonymity outweighs prejudice to the opposing party and the public, mainly because of the serious constitutional implications involved. *Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 766-767; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110.

Because of the inherently sensitive nature of certain proceedings, there are some California statutes which specifically allow for keeping certain parties' identities confidential. This includes, for example, Civ. Code § 1708.87(f)(1) (plaintiff in action for nonconsensual distribution of sexually explicit materials may proceed under pseudonym), Code Civ. Proc. § 372.5 (allowing pseudonyms for guardian ad litem litigating on behalf of a minor), Civ. Code § 3427.3 (allowing pseudonyms in actions for interference with access to health care), Civ. Code § 1708.89 (allowing pseudonyms for doxxing) and California Rules of Court ("CRC"), Rule 8.401(a) (providing for anonymity in juvenile appeals).

In the absence of a statute permitting use of a pseudonym, the Court may still grant such anonymity to preserve an important privacy right. *Doe v. Lincoln Unified School Dist.*, *supra*, 188 Cal.App.4th at 766. In determining whether to allow a party to proceed in a case under a pseudonym where no statute is involved, the Court must apply the overriding interest test. *Department of Fair Employment & Housing*, *supra*, 82 Cal.App.5th at 111. A party seeking anonymity has the burden to show that there exists an overriding interest. *Id.* at 112.

Under the overriding interest test, a Court will find an overriding interest exists where (1) there exists an overriding interest that supports anonymity; (2) there is a substantial probability that the interest will be prejudiced absent anonymity; (3) the proposed anonymity is narrowly tailored to serve the overriding interest; and (4) no less restrictive means exist to protect the interest. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court*, *supra*, 20 Cal.4th at 1218-1221. Outside of an explicit statute, proceeding by pseudonym occurs only in the rarest of circumstances. *Id.* at 1226. If pseudonym use is denied, the pleading must be amended to state the party's true name. *Id.* at 111, fn. 1.

Nothing in the record before the Court establishes that there is an overriding interest justifying permitting Plaintiff to proceed anonymously. Plaintiff's claims, a dispute over the alleged conversion of a luxury automobile and other related allegations, most certainly do not invoke matters of a highly sensitive and personal nature. Rather, this is an ordinary commercial dispute. Plaintiff has not demonstrated that there exists an overriding interest that supports anonymity, much less that there is a substantial probability that the interest will be prejudiced absent anonymity. Moreover, Plaintiff does

not seek to narrowly tailor the request, but rather seeks a sweeping order keeping his true name, trust information and other information about the subject vehicle secret.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is DENIED.
2. Plaintiff is ordered to file an amended complaint (the “Amended Complaint”) to state the party’s true name and to allege in the new pleading whatever information contained in the Documents to be Sealed Plaintiff wishes to allege in support of the stated claims.
3. Defendants shall have **thirty (30) days** after filing and service of the Amended Complaint to file a responsive pleading.
4. In light the foregoing, Plaintiff’s “Motion to Correct Clerical Misnomer in Request for Entry of Default” on May 18, 2026 (the “Motion to Correct”) is MOOT and the new hearing date recently set on that motion July 6, 2026 is VACATED. The related OSC is also DISCHARGED. The Motion to Stay and Quash Deposition Notices filed on May 28, 2026 remains set for hearing on July 6, 2026.

**14. 9:00 AM CASE NUMBER: C26-00316**  
**CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC**  
**HEARING IN RE: APPLICATION FOR WRIT OF POSESSION**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Continued to **October 12, 2026**, 9:00 am, Department 34, by the Court’s Order issued June 11, 2026.

**15. 9:00 AM CASE NUMBER: MSC20-00056**  
**CASE NAME: GULINGAN VS SU**  
**\*HEARING ON MOTION IN RE: CONTINUED FROM 4/13/26**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su (“Defendants”) filed a Motion to Tax Costs on November 25, 2025 (the “Motion to Tax Costs”) directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan (“Gulingan”) on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. At the hearing on April 13, 2026, the Court made certain orders regarding further meet and confer and the preparation of Joint Separate Statement as to any unresolved cost items in dispute. See Order entered May 6, 2026.

Background

A judgment was entered in this action on November 13, 2025 (the “Judgment”). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants.